



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

[HB 2138](#): firefighters; employment status

WAY FLOOR AMENDMENT

1. Modifies the definition of *firefighter* by:
 - a. Removing a county fire department; and
 - b. Including a state firefighter and a fire authority.

WAY FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2138
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.
[Green underlining in brackets] indicates text added to new session law or text restoring existing law.
[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.
[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.
<<Green carets>> indicate a section added to the bill.
<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 23-1021.01, Arizona Revised Statutes, is amended
3 to read:

4 23-1021.01. Peace officers; firefighters; employment status;
5 definition

6 A. A peace officer or ~~fire fighter as defined in section 1-215~~
7 **FIREFIGHTER** who is injured or killed while traveling directly to or from
8 work as a peace officer **OR FIREFIGHTER** shall be considered in the course
9 and scope of employment solely for the purposes of eligibility for
10 workers' compensation benefits, provided that the peace officer or ~~fire~~
11 ~~fighter~~ **FIREFIGHTER** is not engaged in criminal activity.

12 B. ~~Nothing in~~ This section ~~shall~~ **DOES NOT** create any liability on
13 the part of the peace officer's or ~~fire fighter's~~ **FIREFIGHTER'S** employer
14 for any civil damages occurring through the peace officer's or ~~fire~~
15 ~~fighter's~~ **FIREFIGHTER'S** negligent or intentional conduct while traveling
16 to or from work as a peace officer.

17 C. **FOR THE PURPOSES OF THIS SECTION, "FIREFIGHTER" MEANS A**
18 **PROFESSIONAL FIREFIGHTER WHO IS** [ANY OF THE FOLLOWING:

19 1. A STATE FIREFIGHTER.

20 2.] A MEMBER OF A CITY[;][OR] TOWN [; ~~COUNTY OR~~] [FIRE DEPARTMENT.

21 3. A MEMBER OF A] FIRE DISTRICT FIRE DEPARTMENT.

22 [4. A MEMBER OF A FIRE AUTHORITY.]

House Amendments to H.B. 2138

- 1 Enroll and engross to conform
- 2 Amend title to conform

MICHAEL WAY

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01/29/2026
11:00 AM
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